

and by what means?" And your Lordship will see that it is asked, "What was the number of passengers, distinguishing between men and women and adults and children of the 1st, 2nd, and 3rd classes, respectively, who were saved? What was the number of the crew, discriminating their ratings and sex, that were saved? What is the proportion which each of these numbers bears to the corresponding total number on board immediately before the casualty? What reason is there for the disproportion, if any?" Then No. 22 is a general question: "What happened to the vessel from the happening of the casualty until she foundered?" And then question 23 is, "Where and at what time did the 'Titanic' founder?" Then Question 24 is, "What was the cause of the loss of the 'Titanic' and of the loss of life which thereby ensued or occurred?" No. 25 is the question to which I referred, as to the construction and adequate equipment as a passenger steamer and emigrant ship for the Atlantic service, and Question 26 is, "The Court is invited to report upon the Rules and Regulations made under the Merchant Shipping Acts, 1894 -1906, and the administration of those Acts, and of such Rules and Regulations so far as the consideration thereof is material to this calamity, and to make any recommendations or suggestions that it may think fit, having regard to the circumstances of the casualty with a view to promoting the safety of vessels and persons at sea."

My Lord, those are the questions which we submit to the Court at the present moment, and, as I have indicated and as your Lordship will see, by reference to the Rules, we are at liberty at the close of our case to supplement those questions or to modify them if we think fit.

My Lord, I do not think there is anything I can say further. I think that is all that is necessary to trouble your Lordship with today. It indicates what the course of procedure will be, and I have no doubt your Lordship will find it convenient to have the Questions at this early stage, so that you may see to what the evidence will be directed. My Lord, I should propose tomorrow to proceed and open the case on such material as we have at present, and then to call the evidence which is now available.

The President: Then, Sir Robert, if you have had time to consider the questions, or if not, after you have had time to consider them, perhaps you will let me know whether you think the questions ought to be supplemented.

Sir Robert Finlay: My Lord, I saw the questions this morning and at present nothing occurs to me; but of course it will be very carefully considered, and if any further questions occur to me as desirable, of course we will lay them before the Court. I understand the Attorney-General to suggest calling in the first place tomorrow some of the survivors who have reached this country.

The Attorney-General: Yes.

Sir Robert Findlay: There are some four or five of these persons who may be in a position to give evidence with regard to the nature of the damage to the vessel which caused the sinking. There are only four or five of them, and it occurs to us that it would be most desirable that these Witnesses should not leave, as they may be wanted at a later stage, when the evidence from America and the Witnesses who are now in America are available. My Clients will supply the Board of Trade with the names of these Witnesses, and I would suggest for the Attorney-General's consideration that their evidence should be delayed; that they should be kept and that their evidence should not be taken until we

are in a position to put before the Court other evidence with regard to what they can say which may be of importance.

The Attorney-General: I am not sure that I quite appreciate what my learned friend means by the last observation. When the Witnesses have been called, if it is desired to keep four of five of them here, as he says, in case any question arises with regard to Witnesses who may be called from America, of course they will be kept by us, so far as we have power to keep them, and I have no doubt they will remain here.

The President: I did not understand that to be quite the suggestion.

The Attorney-General: I thought it was from what was said at first, but from what my learned friend said just now, I gather the suggestion was that they should not be called till later.

The President: That they should be kept until some additional evidence, without which they cannot be well examined, comes from America. That is what I understand to be the suggestion.

Sir Robert Finlay: All I mean, my Lord, was this: I do not think it is desirable that the evidence of these Witnesses should be split up. It may form part of a whole body of evidence relating to an important part of the Inquiry. But I will put my learned friend, the Attorney-General, in possession of the names of the Witnesses.

The Attorney-General: If my learned friend will tell me who the Witnesses are and his reasons, I have no doubt we shall be able to agree to keep them.

Sir Robert Finlay: Then I understood my learned friend to say that after the evidence of the survivors was taken he would propose to go to the question of construction.

The Attorney-General: Yes.

Sir Robert Finlay: I quite agree with that, and I do not know that any considerable delay at all events will be necessary in dealing with the evidence on that part of the case.

The Attorney-General: No, I think that is a question at the most of two or three days, and I think we shall probably be ready to proceed with that at some time either on Tuesday or Wednesday of next week, assuming we have got rid of the other evidence, which I do not think will take long, because although there are many Witnesses, with a large number of them, as your Lordship knows, it is mere repetition.

Sir Robert Findlay: Then my learned friend mentioned another subject which must be discussed upon the Rules and Regulations that have been made with regard to these matters as to preventing collisions. Of course, any general discussion of Rules and Regulations might take place at any time. The only suggestion I wish to make is that the full consideration of the Rules and Regulations could take place with more advantage when the evidence with regard to the circumstances of this particular casualty is before the Court.

The President: Undoubtedly.

Sir Robert Findlay: And I doubt whether any great advantage would be derived from a general discussion of the Rules and Regulations at present without regard to the particular case, the circumstances of which have not been fully disclosed.

The Attorney-General: The only point is that we could have got on with the evidence that will be forthcoming with regard to the Rules and Regulations. Some evidence will have to be given as to what has taken place in regard to that matter; and if we cannot proceed because Witnesses are not here to put before the Court, it occurred to me that we

could usefully employ the time by calling Witnesses to prove these Rules - not to discuss them. We shall have to discuss them, of course, hereafter. *The President:* What do you mean by proving the Rules?

The Attorney-General: I think your Lordship will have to hear something about the Rules more than mere formal proof. I mean to say as to the history of the Rules - what has been done at various times.

The President: Do the Rules need to be proved?

The Attorney-General: I think probably some evidence will be useful. They will not need to be proved, but it is desirable that you should be told what has happened with regard to them. I attribute no importance to calling that evidence at any

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particular time; the only thing is that I thought you would be anxious that no time should be lost that could be usefully occupied, and therefore that we should proceed as far as we could; but I quite agree with my learned friend that the discussion of them must necessarily be postponed until a later stage, when your Lordship has got the evidence before you. I did not mean to indicate that there should be a discussion; it was only a question of proving what has happened.

The President: What do you propose to do now, Mr. Attorney?

The Attorney-General: I did not propose to do anything further today. There is one matter which, I think, might be dealt with today - I am not sure that it can be satisfactorily disposed of or considered - but it may be that there are persons here today who desire to be represented, and who wish to make an application. I do not know whether your Lordship thinks it would be convenient that they should do that now, if they are here, or that it should be postponed and dealt with altogether tomorrow. We have not had notice of them at present, but whoever is here and wishes to give notice it might be desirable that he should do it. I said we had not had notice. I think we have had notice from one, but who it is I do not know.

A notice was handed to the Attorney-General.

The Attorney-General: This is apparently notice on behalf of the National Sailors' and Firemen's Union.

Mr. Thomas Scanlan, M. P.: I have to apply, my Lord, on behalf of the National Sailors' and Firemen's Union of Great Britain and Ireland, and the personal representatives of a number of their members who were members of the crew, and on behalf of a certain number of their members who are survivors, to be represented in the terms of Rule 5 of the Statutory Rules and Orders to which Sir Rufus Isaacs has referred. Rule 5 is in these terms: "Any other person may, by leave of the Judge, appear, and any person who appears under this Rule shall thereupon become a party to the proceedings." In the terms of that Rule, and on behalf of this Union, which represents 80,000 sailors and firemen, I respectfully make this application.

Mr. W. M. R. Pringle, M.P.: My Lord, I desire to apply to the Court for leave to appear on behalf of the Ship Constructors' and Shipwrights' Association. That Association represents a large body of men who are engaged, not only in the construction of ships,

but who are employed in the manning of ships, and they are consequently interested in this Inquiry from two points of view; first of all, from the point of view of the construction and equipment of ships, more especially in relation to life-saving, and, secondly, in relation to the manning of ships for the purposes of life-saving. It seems to me that, both of these considerations are relevant to certain of these questions which are being put to this Court by the Board of Trade, and which have been enumerated by the AttorneyGeneral.

Mr. Thomas Lewis: My Lord, I desire to make an application to represent the British Seafarers' Union.

The President: How does that differ from the other Union of Sailors and Firemen?

Mr. Thomas Lewis: It is a distinct organisation, my Lord

The President: It may be a distinct organisation, but what is the difference between the two?

Mr. Thomas Lewis: The same class of men are catered for in the organisation, but the British Seafarers' Union represents a large number of the crew. My friend represents a certain number and my organisation represents about 200 members of the crew, about 60 or 70 of whom are survivors. That is on the Sailors' and Firemen's section, and I ask on behalf of the British Seafarers' Union to be allowed to represent them.

Mr. Clement Edwards, M.P.: My Lord, I appear on behalf of the Dockers' Union, a number of whose members formed a part of the crew, some of whom were drowned and some of whom survived.

Mr. L. S. Holmes: My Lord, I appear on behalf of the Imperial Merchant Service Guild, which is a society of officers of the mercantile marine, numbering over 15,000. The second, third, fourth, and fifth officers, who are survivors, are members of that Guild, and the chief and first officer and sixth officer, who are dead, were also members of that Guild, and on their behalf I apply for leave to appear, to represent them at this Inquiry.

Mr. Botterell: My Lord, may I say that I appear here upon instructions on behalf of the Chamber of Shipping. They are anxious to give your Lordship and the Commission any assistance and information they can, and therefore I ask that I may be allowed to appear on their behalf in case any questions arise upon which you may require any assistance.

The President: Mr. Botterell, what is the object of the Association which you are representing?

Mr. Botterell: It is the Chamber of Shipping, my Lord.

The President: In this connection I mean?

Mr. Botterell: Directly, I do not suppose they have any interest in the Inquiry at all, but indirectly, the President of the Chamber thought, as they represent the shipping of the United Kingdom and take a great interest in the matter, it would be as well for them to place themselves at your Lordship's service in case you should require any assistance from them.

The President: Now, Mr. Attorney, subject to anything you may have to say, I propose to allow the National Sailors' and Firemen's Union to be represented; and I propose also to allow the Chamber of Shipping, as I think you called it, Mr. Botterell, to be represented. With regard to the others, if during the Inquiry it occurs to me that it is desirable that they should be represented, then I can take care that the bodies concerned should be communicated with; but I do not feel disposed at present to have more than the two I

have mentioned represented, and I will not do that until I have heard whether you have any objection to it, Mr. Attorney.

The Attorney-General: No, my Lord, I raise no objection.

The President: Do you see any objection to it, Sir Robert Finlay?

Sir Robert Finlay: I am quite content to leave it on the footing your Lordship has suggested.

Mr. W. M. R. Pringle, M.P.: My Lord, may I make a further submission to you? I think that the Ship Constructors' and Shipwrights' Association has a somewhat special interest

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The President: You must not argue the question again. I thought you had said what you wanted to say.

Mr. Thomas Lewis: I am not quite clear, my Lord, with reference to your reply to the Attorney-General. Do I understand that your Lordship will allow the British Seafarers' Union to be represented here?

The President: No, not at present. I may later on.

Mr. Thomas Lewis: May I point out, my Lord, that the union I represent represents a large number of the crew.

The President: That may be; but at present my opinion is I shall have sufficient information and assistance if I allow the National Sailors' and Firemen's Union to be represented. If later on I want your assistance, I will take care to let you know. *Mr.*

L. S. Holmes: May I take it that your Lordship will allow the officers of the "Titanic" to be represented?

The President: I thought I had been very plain in what I said. I have allowed two of the associations to be represented, and I have mentioned

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them. If I find that the others ought to be represented, as I go on with the Inquiry and hear the evidence, I will take care to let you know.

Mr. W. H. Champness: My Lord, I represent the widow of a deceased first-class passenger who was drowned.

The President: Do you appear on behalf of a particular widow?

Mr. W. H. Champness: Yes, a particular widow My Lord, I think nobody has applied at present to your Lordship on behalf of the representatives of the deceased passengers?

The President: I cannot consent to your application.

The Attorney-General: I understand what your Lordship has decided is that the National Sailors' and Firemen's Union and the Chamber of Shipping shall be allowed to appear, and that with regard to the other applications all you have done is to say that at present your Lordship is not allowing them to appear.

The President: That is exactly what I have decided.

The Attorney-General: I am desirous of putting this before your Lordship for your consideration at a later time when you may have some further application made to you in connection with this matter; that so far as I am concerned, I should not raise any opposition to anyone whose interests were involved in any way, during the course of this

Inquiry, being represented or at least applying to your Lordship to be represented. I only want to make that quite clear at the outset, because naturally the Board of Trade are anxious that everybody who has any interest in the matter should, when his interest is affected, have a right to put questions under the presidency of your Lordship. *The President*: I quite understand that. Now is there anything more to be done today? *Sir Robert Finlay*: My Lord, I hear from those sitting near me that there is great difficulty in hearing in this hall. This hall was not built for the purpose of holding Inquiries of this kind, and its acoustic properties are very bad indeed.

The Attorney-General: I quite agree.

Sir Robert Finlay: I think if we go on here it will most seriously hamper the progress of the Inquiry. May I suggest to your Lordship and to the Attorney-General, the desirability, if possible, of getting another hall. There is a large committee room at Westminster which may be available, and, I am perfectly certain that the efficiency of the Inquiry would be enormously increased by having another room better adapted for the purpose.

The President: I absolutely agree, and I am sure if the Attorney-General will put himself in communication with the Solicitor to the Board of Trade, arrangements can be made for the sittings to be held in a hall which will be more convenient, or a room which will be more convenient to all of us.

The Attorney-General: I will see what can be done, certainly. I entirely agree with my learned friend that it is most difficult to hear and most inconvenient; but we will see what can be done. Tomorrow, in any event, we meet here, I understand. *The President*: Yes. We must go on here until we find another room. *The Attorney-General*: What time does your Lordship propose to sit tomorrow morning?

The President: What time will be convenient?

The Attorney-General: I suggest that we sit at half-past ten if that will be convenient to your Lordship.

The President: Very well. We will sit at half-past ten. Then, at present, I will adjourn the Inquiry till half-past ten tomorrow morning.

(Adjourned to tomorrow at half-past ten o'clock.)

Wreck Commissioners' Court.

SCOTTISH HALL,

BUCKINGHAM GATE,

Friday, 3rd May, 1912.

PROCEEDINGS

THE RIGHT HON. LORD MERSEY,
Wreck Commissioner of the United Kingdom,

WITH

REAR ADMIRAL THE HON. S. A. GOUGH-CALTHORPE, C.V.O., R.N.,

CAPTAIN A. W. CLARKE,
COMMANDER F. C. A. LYON, R.N.R.,
PROFESSOR J. H. BILES, LL.D., D.Sc., MR.
E. C. CHASTON, R.N.R.
Acting as Assessors.

ON A FORMAL INVESTIGATION

ORDERED BY THE BOARD OF TRADE INTO THE

LOSS OF THE S. S. "TITANIC."

SECOND DAY.

The RIGHT HON. Sir RUFUS ISAACS, K.C., M.P. (Attorney General), THE RIGHT HON. Sir J. SIMON, K.C., M.P. (Solicitor-General), Mr. BUTLER ASPINALL, K.C., Mr. S. A. T. ROWLATT and Mr. RAYMOND ASQUITH (instructed by Sir R. ELLIS CUNLIFFE, Solicitor to the Board of Trade) appeared as Counsel on behalf of the Board of Trade.

THE RIGHT HON. Sir ROBERT FINLAY, K.C., M.P., Mr. F. LAING, K.C., Mr. MAURICE HILL, K.C., and Mr. NORMAN RAEBURN (instructed by Messrs. Hill, Dickinson and Co.) appeared as Counsel on behalf of the White Star Line.

Mr. THOMAS SCANLAN, M.P. (instructed by Mr. Smith, Solicitor) appeared as Counsel on behalf of the National Sailors' and Firemen's Union of Great Britain and Ireland, and of the personal representatives of several deceased members of the crew and of survivors who were members of the Union. (Admitted on application.)

Mr. BOTTERELL (instructed by Messrs. Botterell and Roche) appeared on behalf of the Chamber of Shipping of the United Kingdom. (Admitted on application.)

Mr. THOMAS LEWIS appeared on behalf of the British Seafarers' Union. (Admitted on Application.)

Mr. L. S. HOLMES (of Messrs. Miller, Taylor and Holmes, of Liverpool) appeared on behalf of the Imperial Merchant Service Guild. (Admitted on application.)

Mr. HAMAR GREENWOOD, M.P. (instructed by Messrs. Pritchard and Sons) watched proceedings on behalf of the Allan Line Steamship Company.

Mr. HAMAR GREENWOOD, M.P. (instructed by Messrs. William A. Crump and Son) watched proceedings for the Canadian Pacific Railway Company.

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The Commissioner: Is Mr. Scanlan here?

Mr. Scanlan: Yes, my Lord.

The Commissioner: Mr. Scanlan, can you tell me how many men there were on board this vessel who belonged to what is called the British Seafarers' Union?

Mr. Scanlan: That I cannot tell your Lordship. The Seafarers' Union is a distinct body from the Union I represent.